



CHAPTER liii.

An Act to empower the lord mayor aldermen and citizens of the city of Leeds to acquire lands for providing further housing accommodation and to construct tramways street improvements and waterworks to extend the boundary of the city and for other purposes. A.D. 1919.

[15th August 1919.]

WHEREAS there is urgent necessity for further housing accommodation for the inhabitants of the city of Leeds and with the view to assisting in the provision of such accommodation the lord mayor aldermen and citizens of the said city (in this Act called "the Corporation") have agreed to purchase certain lands in the township of Middleton in the rural district of Hunslet which adjoins the city and it is expedient that the agreement a copy of which is set forth in the Second Schedule should be confirmed and that provision should be made for carrying it into effect and that the Corporation should be empowered to use the lands acquired in pursuance thereof for the purposes of the Housing Acts and should be authorised to acquire additional lands for those purposes:

And whereas in order to provide better means of access from the existing city to the lands proposed to be acquired it is expedient to empower the Corporation to construct the tramways and tramroads authorised by this Act (in this Act called "tramways") and in connexion therewith to construct the street improvements thereby authorised:

And whereas it is expedient to empower the Corporation to construct the waterworks authorised by this Act;

A.D. 1919.

—

And whereas it is expedient to extend the boundaries of the city so as to include the area of the township of Middleton:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

For the construction of the tramways and tram-	£
roads authorised by this Act - - -	191,653
For the provision of the electrical equipment	
and the construction of the other works	
necessary for the tramways and tramroads	
authorised by this Act - - -	30,273
For the construction of the street improvements	
authorised by this Act - - -	12,200
For the purchase of land and easements for and	
the construction of the works authorised by	
Part V. (Water) of this Act - - -	17,260

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the west riding of Yorkshire which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the A.D. 1919.
authority of the same as follows:—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the Leeds Corporation Act 1919. Short and collective titles.

(2) The local Acts as hereinafter defined and this Act may be jointly cited as the Leeds Corporation Acts 1896 to 1919.

2. This Act is divided into Parts as follows (that is to say):— Division of Act into Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Tramways.

Part IV.—Street Improvements.

Part V.—Water.

Part VI.—Extension.

Part VII.—Financial and Miscellaneous Provisions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(1) The Lands Clauses Acts with the following exceptions and modifications:—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section;

(c) All claims for compensation made upon the Corporation under this Act or any Act incorporated herewith shall if the person claiming has no greater interest in the land in respect of which compensation is claimed than as tenant from year to year

A.D. 1919.
—

or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made be determined in manner provided by section 121 of the Lands Clauses Consolidation Act 1845;

(d) Any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Corporation and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party;

(2) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) Part II. and Part III. (except section 43 relating to the future purchase of the undertaking by the local authority) of the Tramways Act 1870 Provided that—

(a) The words in section 19 of that Act “but
“ nothing in this Act contained shall authorise
“ any local authority to place or run carriages
“ upon such tramway and to demand and take
“ tolls and charges in respect of the use of such
“ carriages ” shall not apply to the Corporation;

(b) So much of section 46 as authorises a local authority (not being the promoters) to make regulations shall not apply to so much of the tramways authorised by this Act as shall not be constructed on highways;

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway those provisions being construed as if a reference to the tramways authorised by this Act had been inserted therein instead of the expression “the railway”;

(4) The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the consent in writing

“ of the owner or reputed owner of any such house
 “ or of the agent of such owner ” were omitted from
 section 44; and

A.D. 1919.

(5) The Waterworks Clauses Act 1863.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpreta-
 tion.

(2) In this Act unless the subject or context otherwise requires—

- (a) “ The city ” means the city of Leeds;
- (b) “ The existing city ” means the city as it exists immediately before the appointed day;
- (c) “ The Corporation ” means the lord mayor aldermen and citizens of the city of Leeds;
- (d) “ The council ” means the council of the city;
- (e) “ The town clerk ” means the town clerk of the city and includes any person duly authorised to discharge temporarily the duties of that office;
- (f) “ The city fund ” and “ the city rate ” mean respectively the city fund and the city rate of the city;
- (g) “ The Middleton Company ” means the Middleton Estate and Colliery Company Limited;
- (h) “ The county council ” means the county council of the west riding of Yorkshire;
- (i) “ The county ” means the county of the west riding of Yorkshire;
- (j) “ The Hunslet district ” and “ the Hunslet Council ” mean respectively the Hunslet rural district and the Hunslet Rural District Council;
- (k) “ The added area ” means the area of the township of Middleton;
- (l) “ The existing township of Hunslet ” means the township as it exists immediately before the appointed day and “ the township of Hunslet ” means that township as altered by this Act;

A.D. 1919.

- (m) "The city map" means the map signed in triplicate by the Right Honourable the Earl of Kintore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office;
- (n) "The Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (o) "The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same;
- (p) "The Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (q) "The Housing Acts" means the Housing Acts 1890 to 1919;
- (r) "The local Acts" means the local Acts specified in Part I. of the First Schedule the Orders specified in Part II. of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders and each of the Acts and Orders specified in the said schedule is referred to as the Act or Order of the year in which it was passed or confirmed;
- (s) "The appointed day" means the first day of April nineteen hundred and twenty;
- (t) "The tribunal" means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred;
- (u) "The First Schedule" "the Second Schedule" and "the Third Schedule" mean respectively the First Schedule the Second Schedule and the Third Schedule to this Act.

PART II.

LANDS.

Confirma-
tion of
agreement
with Mid-

5. The agreement dated the thirty-first day of December nineteen hundred and eighteen and made between the Middleton Company and the Corporation of which a copy is set forth in

the Second Schedule is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto subject to such amendments (if any) as may be agreed between the said parties in writing under their respective common seals.

A.D. 1919.

dleton Com-
pany.

6. Subject to the provisions of this Act the Corporation may enter upon take and use for and in connexion with the purposes of this Act and of the Housing Acts and (in the case of the making widening or improving of any street or road) for providing space for the erection of buildings adjoining or near to such street or road all or any part of the lands delineated on the deposited plans and described in the deposited book of reference.

Acquisition
of lands.

7. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county for the correction thereof and if it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county and shall be kept by such clerk of the peace with the other documents to which the same relates and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Correction
of errors in
deposited
plans and
book of
reference.

8.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners
may be
required to
sell parts
only of cer-
tain pre-
mises.

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the

A.D. 1919.
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Third Schedule and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:
- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat

A.D. 1919.
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can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:

(f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:

(g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any premises.

9. For the purposes of determining any question of disputed compensation payable in respect of lands taken under

Compensation in case of recently

A.D. 1919.
acquired
interest.

the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the twentieth day of November nineteen hundred and eighteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Costs of
arbitration
&c. in cer-
tain cases.

10.—(1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time has been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Period for
compulsory
purchase of
lands.

11. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

12.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

A.D. 1919.
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Extinction
of private
rights of
way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

13.—(1) In addition to any other lands acquired by the Corporation in pursuance of this Act they may by agreement purchase take on lease or acquire and may hold for the purposes of this Act further lands not exceeding five acres and they may on such lands erect or construct and hold depôts yards wharves offices buildings sidings works and other conveniences.

Purchase of
lands by
agreement.

(2) Nothing in this Act shall exonerate the Corporation from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them under this section.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons
under dis-
ability may
grant ease-
ments &c.

15.—(1) Any lands acquired by the Corporation under the powers of this Act may be used by them for any of the purposes of the Housing Acts.

Use of lands.

(2) The Corporation may on any such lands provide construct and maintain pleasure and recreation grounds open spaces streets roads institutions schools kitchens and other buildings works and conveniences.

16. Notwithstanding anything in any Act or Acts to the contrary the Corporation may retain hold and use for such

Retention
and disposal
of lands.

A.D. 1919. — time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any Act incorporated with this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds
of sale of
surplus
lands.

17.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the resale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board.

(2) Provided that—

(a) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase:

(b) The borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Great
Northern
property

18. Notwithstanding anything contained in this Act or shown upon the deposited plans the Corporation shall not under the powers or for the purposes of this Act enter upon purchase

take or use any lands works or property belonging to the Great Northern Railway Company but they may acquire such easements or rights in or on the occupation roads included in the lands numbered respectively 240 242 and 255 in the township of Middleton as they may require for the purposes of this Part of this Act Provided that the exercise of such easements or rights does not interfere with the bridges carrying the Great Northern Railway over such roads and such easements or rights shall be deemed to be lands for the purposes of the Lands Clauses Acts.

A.D. 1919.
not to be
taken.

PART III.

TRAMWAYS.

19.—(1) The Corporation may subject to the provisions of this Act construct maintain use and work in accordance with the deposited plans and sections the tramways and tramroads hereinafter described (all of which are in this Act called “tramways”) with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places posts poles brackets wires stables carriage-houses engine-houses sheds buildings works and conveniences connected therewith:

Construc-
tion of
tramways.

Provided that nothing in this Part of this Act or in any Act wholly or in part incorporated therewith shall authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 (Power of undertakers to alter position of wires and pipes) of the former Act apply except in accordance with and subject to the provisions of that section.

(2) The works hereinbefore referred to and authorised by this section will be situate in the existing city and in the township of Middleton and are—

Tramway No. 1 (Partly a tramway and partly a tramroad double line 3 miles 5 furlongs 2·09 chains in length) commencing by a junction with the existing tramway in Dewsbury Road near to its junction with Jack Lane and terminating near to the southerly end of Hopewell View:

Tramway No. 2 (A tramway double line 2 furlongs 2·1 chains in length) commencing by a junction with the existing tramway in Dewsbury Road near to its junction

A.D. 1919.

with Moor Road proceeding along Moor Road and terminating by a junction with Tramway No. 1 at the junction of Moor Road with Moor Crescent:

Tramway No. 3 (Partly a tramway and partly a tramroad double line 4 furlongs 6·36 chains in length) commencing by a junction with the existing tramway in the Leeds and Guiseley Road at a point about 177 yards in a south-easterly direction from the point where the city boundary crosses the road and terminating at the south-westerly boundary of Butcher Hill:

Tramway No. 4 (Partly a tramway and partly a tramroad 2 miles 1 furlong 4·59 chains in length whereof 9 chains will be treble line and 2 miles and 5·59 chains will be double line) commencing by a junction with the existing tramway in Balm Road at a point 150 feet from Moor Road and terminating near to the southerly end of Hopewell View:

Tramway No. 5 (A tramroad single line 1 furlong 1·06 chains in length) commencing by a junction with the Middleton Company's railway at a point near to Belle Isle and terminating by a junction with Tramway No. 4 at a point 730 feet measured in a south-easterly direction from the point of commencement.

(3) Provided that so much of Tramway No. 1 as will be situate in Jack Lane shall not be constructed until that lane has been widened so that a space not less than nine feet six inches will intervene between the outside of the footpath on each side of the lane and the nearest rail of the tramway.

Period for
completion
of tram-
ways.

20. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing such tramways or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Power to
deviate.

21.—(1). In the construction of works authorised by this Part of this Act the Corporation may deviate from the lines shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may also deviate from the levels shown on the deposited sections to any extent not exceeding five feet upwards or downwards.

(2) Provided that in the exercise of the powers of this section the Corporation shall not lay any rails along or across a road except in such manner that the uppermost surface of the rail shall be on a level with the surface of the road. A.D. 1919

22.—(1) The powers and provisions with regard to tramways contained in the Act of 1905 and in section 7 (Use of tramway posts by Postmaster-General) of the Leeds Corporation Tramways Order 1907 shall apply to the tramways authorised by this Act as if such tramways had been Corporation tramways as defined in the Act of 1905: Application of existing enactments.

Provided that—

(a) No post or other apparatus shall be erected on any carriageway in connexion with the tramways authorised by this Act except with the consent of the Board of Trade:

(b) The following sections of the Act of 1905 shall not apply to so much of the tramways as shall not be constructed on highways (namely):—

Section 59 Plan of proposed mode of construction;

Section 61 Penalty for not maintaining rails and roads;

Section 62 Tramways to be kept on level of surface of road;

Section 63 Cross-overs to be constructed where less than a certain width left between footpath and tramway;

Section 65 Temporary tramways may be made when necessary;

Section 66 Application of road materials excavated in construction of works;

Section 73 Apparatus used for mechanical power to be deemed part of tramway:

(c) The provision contained in section 57 (Gauge of Corporation tramways) of the Act of 1905 which prohibits the running on tramways of carriages or

A.D. 1919.

trucks adapted to be run on railways shall not apply to—

(i) so much of Tramway No. 1 as will be situate between the point where it crosses the occupation road near to Hunslet Foundry and the termination of the tramway;

(ii) the whole of Tramway No. 5;

(iii) so much of Tramway No. 4 as will be situate between its junction with Tramway No. 5 and its termination.

(2) So much of the tramways authorised by this Act as shall not be constructed on highways shall be deemed to be railways constructed under the powers of an Act of Parliament for public conveyance for the purposes of the Leeds (Rating &c.) Order 1915.

Agreements
with Mid-
dleton Com-
pany.

23.—(1) The Corporation and the Middleton Company may enter into and carry into effect agreements with respect to the formation of junctions between the tramways of the Corporation and the railways of the Middleton Company the running over and user of those railways by the Corporation the alteration and adaptation thereof for working by electric traction and the provision of works and conveniences therefor and the supply of electricity by the Corporation to the Middleton Company for use within the city.

(2) Provided that the provisions of section 71 (For protection of Postmaster-General) and of section 72 (For protection of Post Office telegraph lines) of the Act of 1905 shall extend and apply to the working by electric traction of the said railways by the Corporation or the Middleton Company and to the supply of electricity by the Corporation to the Middleton Company under any agreement made in pursuance of this section.

Power to
require
intending
passengers
to wait in
lines or
queues.

24.—(1) For the better regulation of persons desiring to travel in the carriages on the Corporation's tramways the Corporation may erect and maintain barriers and posts at any stopping-place or terminus and for that purpose may with the consent of the road authority use part of the highway and the Corporation may make byelaws requiring persons waiting to enter carriages at any stopping-place or terminus upon any of their tramways to wait in lines or queues and to enter such carriages in the order in which they stood in such line or queue.

(2) Any byelaws made under this section shall be made subject and according to the provisions of section 46 (Byelaws by local authorities Promoters may make certain regulations) and section 47 (Penalties may be imposed in byelaws) of the Tramways Act 1870 and those provisions shall apply accordingly. A.D. 1919.

(3) Provided always that the Corporation shall not erect or maintain any barriers or posts or require persons waiting to enter carriages to wait in any line or queue so as to interfere with or render less convenient the access to or egress from any station or depôt belonging to any railway company.

25. The following provisions for the protection of the Great Northern Railway Company (in this section referred to as "the company") shall unless otherwise agreed between the Corporation and the company in writing under their respective common seals apply and have effect (that is to say):— For protection of Great Northern Railway Company.

(1) Tramway No. 1 by this Act authorised where the same will pass under the viaduct carrying the railway of the company over the watercourse known as the Belle Isle Beck and the land on either side thereof and Tramway No. 4 by this Act authorised where the same will pass under the bridge carrying the railway of the company over the road known as "The Run" shall be constructed and maintained so as not to interfere with the structures of such viaduct and bridge and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the company (hereinafter called "the engineer") and according to plans sections and specifications to be previously submitted to and reasonably approved by him or in case of difference between him and the engineer of the Corporation by an arbitrator to be appointed as hereinafter provided and the Corporation shall pay the company the reasonable costs of such superintendence:

(2) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company by or by reason of the construction execution or failure of the said Tramways Nos. 1 and 4 or the works in connexion therewith by this Act authorised or by or by reason of any act default or omission of the Corporation or their

A.D. 1919.

contractors or any person in the employment of the Corporation or their contractors with reference to such tramways and works and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such construction execution or failure or of any such act default or omission:

(3)—(a) If having regard to the proposed position of the works of the Corporation when considered in relation to the position of the works of the company at the point where the said tramways or either of them will be constructed under the railway of the company it is expedient that the electric telegraphic telephonic or signal wires or apparatus belonging to or maintainable by the company should be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense thereof shall be paid by the Corporation:

(b) Any question as to whether it is expedient that any alteration should be made in accordance with this subsection or whether any work is reasonably necessary or as to the amount of the reasonable expense of executing any work shall unless otherwise agreed be referred to the Board of Trade for their determination or at the option of that Board to the arbitration of a person nominated by that Board:

(4) If and when the company shall require to reconstruct alter repair or paint the said viaduct or bridge the Corporation shall give the company all proper and reasonable facilities therefor and (if any electric wire of the Corporation has been placed under the said viaduct or bridge for the purpose of working the said Tramway No. 1 or the said Tramway No. 4 by electric traction) the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repair or painting cut off the electric current from the trolley wires under such viaduct or bridge at such time as shall be agreed between the engineer and the Corporation's engineer unless the Corporation shall have previously adopted some other means of protecting the workmen which shall have been reasonably approved by the engineer and any addi-

tional cost which the company may be put to or incur in such reconstruction alteration repair or painting by reason of the existence of such electric wires of the Corporation under the said viaduct or bridge shall be from time to time repaid to the company by the Corporation :

A.D. 1919.

(5) The Corporation shall not for the purposes of this Act make any attachment to the said viaduct or bridge without the consent in writing of the engineer and then only subject to such conditions as are contained in such consent :

(6) If any difference shall arise under this section between the Corporation and the company or their respective engineers (except under subsection (3)) the same shall be referred to and determined by an engineer as single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of the Corporation or the company and subject thereto the provisions of the Arbitration Act 1889 shall apply to the reference.

PART IV.

STREET IMPROVEMENTS.

26. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street improvements hereinafter mentioned together with all necessary approaches junctions abutments embankments arches steps sewers drains culverts works and conveniences connected therewith or incidental thereto.

Power to
make street
improve-
ments.

The street improvements hereinbefore referred to and authorised by this section will be situate in the city and are:—

Street Work No. 1 A widening of Jack Lane on both sides thereof commencing at its junction with Dewsbury Road and terminating at the public footpath leading from Jack Lane to Gold Street :

Street Work No. 2 A new street together with a footbridge and footpath being a diversion of an existing footbridge over the Midland Railway and footpath commencing in Jack Lane near to the picture theatre and terminating at Moor Crescent near to its junction with Craven Gate :

A.D. 1919.

Street Work No. 3 A diversion of Moor Crescent commencing at the bend of that crescent at a point 100 feet measured in an easterly direction from the junction of Craven Gate and Moor Crescent and terminating at the junction of Moor Crescent with Moor Road :

Street Work No. 4 A diversion of Burton Row and Longroyd Terrace commencing in Burton Row opposite to the centre of Back Longroyd Terrace and terminating in Longroyd Terrace.

Limits of deviation.

27. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

Subsidiary works.

28.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connexion with any work authorised by this Part of this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such work and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such work or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

Power to alter steps pipes areas &c.

29. Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts

belonging to any house or building and also the drains and the pipes & wires for the purpose of conveying water electricity or gas to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. A.D. 1919.

30.—(1) As from the completion of the new street (Street Work No. 2) the diversion of Moor Crescent (Street Work No. 3) and the diversion of Burton Row and Longroyd Terrace (Street Work No. 4) authorised by this Act respectively all rights of way over or along the existing portions of the streets footpaths footbridge or land dedicated to the public use as will be rendered unnecessary by those works respectively or as are shown on the deposited plans as intended to be stopped up shall be extinguished and the Corporation may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use the sites stopped up as far as the same are bounded on both sides by lands of the Corporation and most shall be vested in them. Stopping up of highways.

(2) The Corporation shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

PART V.

WATER.

31.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works hereinafter described. Power to make water works.

The said works will be situate in the existing city and the township of Middleton and are—

- (a) A pump-house and pumps adjacent to the Dewsbury Road Reservoir authorised by the Act of 1907:

A.D. 1919.

(b) A conduit consisting of a line or lines of pipes commencing in the said pump-house and terminating in the water-tower hereinafter mentioned and in the existing Middleton Reservoir:

(c) A water-tower to be called the Middleton Water-tower adjacent to the existing Middleton Reservoir.

(2) In addition to the foregoing principal works the Corporation may upon the said lands make and maintain all such culverts tunnels shafts drains junctions discharge pipes sluices tanks basins filter beds filters embankments dams retaining walls bridges roads tramroads approaches telegraphic and telephonic apparatus valves machinery buildings appliances apparatus and conveniences connected with or ancillary to the said works or necessary for inspecting maintaining repairing cleansing managing working or using the same.

Power to deviate.

32.—(1) In the construction of the works authorised by this Part of this Act the Corporation may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits) and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards and to any extent downwards.

(2) Provided that except for the purpose of crossing over a stream no part of the conduit authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Period for completion of works.

33.—(1) If the works authorised by this Part of this Act and delineated on the deposited plans are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed.

(2) Provided that the Corporation may at any time extend enlarge alter reconstruct renew or remove any of their works and in the case of the conduit authorised by this Act lay down additional lines of pipes as and when occasion may require.

34. The following provisions of the Act of 1913 shall extend and apply to and for the purposes of this Part of this Act as if those provisions were with all necessary modifications re-enacted therein (namely):—

A.D. 1919.

Application
of provisions
of Act of
1913.

Section 6 Corporation may acquire easements only in certain cases;

Section 9 Temporary discharge of water into streams;

Section 10 New works to form part of existing water-works undertaking;

Section 11 Application of Waterworks Clauses Act 1847 to conduits discharge pipes and telephones; and

Section 12 For protection of Postmaster-General.

PART VI.

EXTENSION.

35. This Part of this Act shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject matter or context inconsistent therewith come into operation on the appointed day.

Commence-
ment of
Part VI.

36.—(1) The boundary of the existing city shall be altered so as to include in addition to the area of the existing city so much of the Hunslet district as comprises the township of Middleton.

Extension
of city.

(2) The boundary of the city shall be that shown by the red line on the city map and the whole of the area within that boundary with the exception of the area of the detached part of the borough of Pudsey which is coloured purple on the city map shall for the purposes of the Municipal Corporations Acts and for all other purposes be the city and shall be the county borough of Leeds for the purposes of the Act of 1888.

37.—(1) Copies of the city map deposited with the town clerk certified by him to be true shall be sent as soon as may be to the clerk of the county council to the clerk of the Hunslet Council to the Commissioners of Customs and Excise to the Board of Inland Revenue to the Registrar-General to the Postmaster-General to the Board of Trade to the Local Government Board and to the Board of Agriculture and Fisheries.

City map.

A.D. 1919.

(2) Copies of or extracts from the city map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the city and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the city and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the city fund.

Powers and duties of justices &c. extended.

38.—(1) The powers and duties of the quarter sessions recorder and clerk of the peace of the existing city of the justices of the peace and stipendiary magistrates appointed for the existing city and of the clerk to those justices and of the police constables and other peace officers of the existing city shall extend to and apply throughout the city.

(2) Provided that every person committing an offence in any part of the added area prior to the appointed day shall be tried adjudicated on and dealt with as if this Act had not been passed.

(3) Provided also that every proceeding which prior to the appointed day has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

Lists and registers of electors.

39.—(1) For the purposes of the lists and registers of electors to be prepared in pursuance of the Representation of the People Act 1918 and of all matters connected with incidental to or consequent upon those purposes the added area shall be deemed to have formed part of the city as from the fifteenth day of July nineteen hundred and nineteen.

(2) Where in the opinion of the Local Government Board the circumstances so require the Board may make such order as appears to them to be necessary to give effect to the provisions of this Act and may vary so far as is requisite the provisions in force with regard to such lists and registers.

(3) For the purposes of the application to the city of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the city. A.D. 1919.

40. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:— Wards.

- (1) For the purposes of the election of councillors the city shall continue to be divided into seventeen wards:
- (2) The added area shall be included in the East Hunslet Ward of the city:
- (3) The councillors representing the East Hunslet Ward immediately before the appointed day shall be deemed on and after that day to represent that ward as altered by this section.

41. The town clerk and all other officers and servants of the Corporation of the existing city who hold office on the appointed day shall continue to be the town clerk and officers and servants of the Corporation of the city and shall hold their offices by the same tenure as at that day. Town clerk and other officers continued.

42. The auditors of the existing city who are in office on the appointed day shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors. City auditors.

43. Unless otherwise agreed between the Corporation and the officers hereinafter mentioned the Corporation shall take into their service or employment Samuel Fisher the collector of poor rate of the township of Middleton and Cyril James Dixon assistant overseer of that township if they respectively hold those offices immediately before the appointed day and those officers shall hold office by the same tenure at the same remuneration with the same rights (if any) of pension and as nearly as may be consistently with the work to be required of them upon the same terms and conditions as those by at with and upon which they held the said offices respectively on the first day of January nineteen hundred and nineteen and if either of such officers could only be removed with the consent of the Local Government Board such consent shall be part of the tenure of his office: Transfer of officers.

A. D. 1919.

Provided that any pension that may be payable under the provisions of this section shall be paid out of the city fund and city rate.

Compensation to existing officers.

44.—(1) Every clerk to justices and every officer or servant of or paid by the county council or of or paid by the standing joint committee of the county and every other officer or servant who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not (unless the Corporation otherwise agree) exceed the limit therein mentioned and shall be paid out of the city fund and city rate and the provisions of subsections (2) to (7) of section 120 of the Act of 1888 shall apply with the necessary modifications and with the substitution of the Local Government Board for the Treasury:

Provided that—

- (a) the non-acceptance of any office shall not be a bar to the right of any officer to compensation;
- (b) In the application of subsection (1) of section 120 of the Act of 1888 “the Acts and rules relating to Her Majesty’s Civil Service” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888.

(2) For the purposes of subsection (1) of this section any clerk to justices officer or servant to whom that subsection applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the county council or the standing joint committee of the county or any other authority including the Corporation within five years from the appointed day because his services are not required or his duties are diminished in consequence of this Act and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Act.

(3) Subject to the provisions of this Act no person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss. A.D. 1919.

(4) The expression "officer or servant of or paid by the county council" in subsection (1) of this section shall include all teachers employed in elementary schools maintained by the county council in the added area and the provisions of this section shall be read and have effect accordingly Provided that in the case of such teachers—

(a) a period of five years next before the date at which any loss in respect of which compensation is claimed first arose shall be substituted for the period of five years referred to in subsection (2) of section 120 of the Act of 1888:

(b) any expenses under this section in the case of teachers shall be paid by the Corporation out of the fund or rate out of which expenses of the Corporation under the Education Acts 1870 to 1918 are paid and if any compensation is payable otherwise than by an annual sum the payment of that compensation shall be a purpose for which the Corporation may borrow for the purposes of those Acts.

45. Any action or proceeding or any cause of action or proceeding which at the appointed day is pending or existing by or against the Hunslet Council in relation exclusively to any part of the added area shall not be in anywise prejudicially affected by reason of the passing of this Act but may be continued prosecuted and enforced by or against the Corporation. Actions &c.
not to abate.

46. Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the appointed day) entered into or made by the Hunslet Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation and may be continued and enforced as fully and effectually as if instead of the Hunslet Council or their predecessors the Corporation had done or suffered the same or been a party thereto. Saving for
contracts
&c.

A.D. 1919.

Corporation
property &c.

47. Subject to the provisions of this Act all property vested in the Corporation at the appointed day for the benefit of the existing city shall by virtue of this Act be held by the Corporation for the benefit of the city and the Corporation shall hold enjoy and exercise for the benefit of the city all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing city and all liabilities which on the appointed day attach to the Corporation in respect of the existing city shall from and after that day attach to them in respect of the city.

Mortgage
debts of
Corporation.

48. So much of any sums borrowed by the Corporation as will at the appointed day be owing and charged upon the city fund and city rate of the existing city shall by virtue of this Act be charged upon the city fund and city rate of the city and shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Local Acts.

49. Subject to the provisions of this Act the unrepealed provisions of the local Acts and of any other local Act (including any local Act passed or to be passed during the present session of Parliament) or of any other provisional order duly confirmed by Parliament and affecting the existing city or the Corporation as the same respectively are in force within the existing city on the appointed day shall extend and apply to the city and any reference therein to the existing city and the Corporation shall be deemed to refer to the city and the Corporation thereof.

Amendment
of Yorkshire
Electric
Power Act
1901.

50. Section 50 (For protection of certain cities and boroughs) of the Yorkshire Electric Power Act 1901 shall extend and apply to the whole of the city as extended by this Act as if the same were therein referred to instead of the city as existing at the passing of the Yorkshire Electric Power Act 1901.

Adoptive
Acts.

51. The provisions of the following Acts (namely):—

The Baths and Washhouses Acts 1846 to 1899;

The Infectious Disease (Prevention) Act 1890;

Parts II. and III. of the Public Health Acts Amendment Act 1890;

The Museums and Gymnasiums Act 1891 so far as the same relates to museums; and

The Public Libraries Acts 1892 to 1901;

shall be in force in and apply to the city as if the same had been adopted in respect of every part thereof.

52. Subject to the provisions of any order which the Local Government Board or a Secretary of State may hereafter make—

(1) The provisions of any order heretofore made by the Local Government Board and conferring upon the council of the existing city any of the matters mentioned in section 33 of the Act of 1894 and in that order shall be deemed to have effect as if any reference in those provisions to the existing city the council of the existing city and the existing parishes comprised therein extended and applied to the city the council of the city and the township of Hunslet as altered by this Act:

Powers under section 33 of Act of 1894 and under Public Health Acts Amendment Act 1907.

(2) The provisions of any order made by the Secretary of State or the Local Government Board and declaring to be in force in the existing city any parts or sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing city extended and applied to the city and as if the said parts and sections were accordingly declared to be in force in the city and the provisions of any such order declaring to be in force in the Hunslet district any parts or sections of that Act shall on the appointed day be annulled in so far as they apply to the added area.

53. Subject to the provisions of this Act—

Byelaws &c.

(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which on the appointed day are in force in the existing city shall thenceforth apply to the city until or except in so far as any such byelaws regulations list of tolls table of fees and payments or scale of charges may be altered or repealed:

(2)—(a) All byelaws and regulations made by the county council or by the Hunslet Council or their pre-

A.D. 1919.

decessors and in force immediately before the appointed day in any part of the added area shall on that day cease to be in force except as regards any work which has been begun before that day or as regards any work which has not been so begun but for which plans have been approved by the Hunslet Council before that day or have been sent to the surveyor or clerk to that council one month at least before that day and have not been disapproved by that council;

(b) As regards any such work as aforesaid the byelaws in force immediately before the appointed day shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the city were referred to therein instead of the Hunslet Council and the Hunslet district;

(c) Provided that any proceedings which if this Act had not been passed might have been taken by the county council or by the Hunslet Council for any offence committed before the appointed day against any byelaws and regulations made by that council or their predecessors and in force immediately before the appointed day in any part of the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that council :

(3) Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 and in force immediately before the appointed day in any area affected by this Act shall subject to the provisions of the Shops Act 1912 remain in force and apply to the area to which it applies immediately before the appointed day.

Education.

54. For the purposes and subject to the provisions of the Education Acts 1870 to 1918—

(1) All public elementary schools (including the sites and schoolhouses) provided by the local education authority and situate within any part of the added area

with the furniture and fittings of the schoolhouses shall by virtue of this Act be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the county council as the local education authority and all contracts debts and liabilities which at the appointed day are existing or are owing by or attach to the county council in respect exclusively of the said public elementary schools furniture or fittings or of any other public elementary school situate in any part of the added area or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Act enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority: A.D. 1919.

Provided that section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subsection:

- (2) The liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and any furniture or fittings transferred to and vested in the Corporation by virtue of this Act as will be owing at the appointed day and the liability for the payment of interest on that part of the said loan shall by virtue of this Act be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the appointed day shall be charged on the city fund and the city rate and shall be repaid by the Corporation within the period (if any) for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:
- (3) Any byelaws in force in the existing city immediately before the appointed day shall from and after that day apply to the city until revoked or altered and from and after that day any byelaws then in force in any part of the added area shall cease to be in force:

A.D. 1919.

- (4) Any managers of public elementary schools in the added area who were appointed by the parish council of the parish of Middleton by the Hunslet Council or by the county council shall vacate office on the appointed day.

Differential
rating.

55.—(1) The total amount in the pound of the city rate to be levied by the Corporation in any one year during a period of fifteen years from the appointed day in respect of any hereditament in the added area shall not exceed such an amount in the pound as when added to the poor rate will make up a total of five shillings and eightpence in each pound of the rateable value of the hereditament.

(2) The provisions of subdivisions (1) and (2) of Article IV. (Differential rate in certain cases) of the Order of 1915 shall apply to the city rate to be levied by the Corporation within the added area as if the added area had been part of the city at the date of the confirmation by Parliament of the said Order Subject and provided as follows (that is to say):—

That during the period of fifteen years mentioned in subsection (1) of this section the provisions of subdivision (1) of the said Article IV. shall apply as aforesaid to the city rate as limited by subsection (1) of this section with the substitution of nine-tenths for thirteen twenty-fifths in subdivision (1) (a) of the said Article IV. and with the substitution of twenty-three twenty-fifths for two-thirds in subdivision (1) (b) of the said Article IV. and subdivision (2) of the said Article shall not apply.

(3) During the period of fifteen years mentioned in this section and subject to the provisions of Article V. of the Order of 1915 section 146 of the Municipal Corporations Act 1882 with the necessary modifications shall have effect in relation to the city rate as if the existing township of Hunslet and the added area were respectively parts of a parish partly within and partly without the city and the amount of contribution to the city rate to be assessed on the added area shall be deemed to be and shall be such amount as shall be provided from the proceeds of a city rate levied as in this section before provided and the balance of any city rate after deducting therefrom the amount of the said contribution shall be assessed (subject as hereinbefore provided) as if such balance were a city rate for the existing city.

56.—(1) On the appointed day such members (if any) of the police force of the county as shall be determined by agreement to be made as soon as practicable after the passing of this Act between the standing joint committee of the county and the watch committee of the existing city or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the city and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Act had not been passed and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Act had not been passed.

A.D. 1919.
County
police.

(2) The provisions of section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force transferred under the powers of this section as if that member had removed with the written sanction of the chief constable of the county.

57.—(1) (a) In any case where the extension of the existing city by this Act affects the distribution of the proceeds of the local taxation licences or of the estate duty grant or of the local taxation (customs and excise) duties between the county and the city or between the county and the city on the one hand and any other county borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested.

Adjustment
of financial
relations
between
county and
county
boroughs.

(b) For the purposes of this subsection or of anything done or to be done in pursuance of this subsection any reference in this said subsection to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of section 17 of the Finance Act 1907 as amended by section 6 of the Finance Act 1908 and section 88 of the Finance (1909–10) Act 1910 and the Revenue Act 1911 or of any subsequent Act have been paid or will be payable in lieu of those proceeds.

(2) Any such adjustment as is authorised by subsection (1) of this section may be made by agreement between the councils of the city the county and the county boroughs affected and if

A.D. 1919. — such adjustment shall not have been made before the thirty-first day of March nineteen hundred and twenty-one then on the application of any of the councils interested the Local Government Board may if they think fit either make the adjustment themselves or appoint an arbitrator to make it.

(3) For the purposes of any such adjustment the provisions of the Act of 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them (as the case may be) shall be substituted in those provisions for the commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Act or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided that—

- (a) In lieu of subsection (6) of section 61 of the Act of 1888 subsections (1) and (5) of section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this section and to the costs of those inquiries; and
- (b) Subsection (6) of section 32 of the Act of 1888 shall apply to any agreement or award made under this section.

Adjustment
for purposes
of licensing.

58.—(1) An equitable adjustment shall be made between the county and the city respecting the interest of the added area in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the compensation authority (as defined by the Licensing (Consolidation) Act 1910) for the county and for the city within twelve months from the appointed day or in default of agreement by an arbitrator appointed by the Secretary of State.

- (3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an

arbitrator within the meaning of section 62 of the Act of 1888 A.D. 1919.
and the provisions of that Act shall apply accordingly.

59.—(1) Subject to the provisions of section 54 of the Act of 1888 the area of the Alverthorpe Electoral Division of the county shall on the appointed day be diminished by the exclusion of the added area therefrom. County
councillors
and electoral
division.

(2) No county alderman or county councillor in office immediately before the appointed day shall be deemed to lose his qualification by reason of the inclusion of the added area in the city.

60. On the appointed day—

- (1) The Hunslet Council shall cease to exercise any powers or have any duties within any part of the added area ; Jurisdiction
of Hunslet
Council and
alteration
of parishes.
- (2) The parish council of the township of Middleton shall cease to exist; and
- (3) The added area shall be amalgamated with the existing township of Hunslet.

61. All sums in respect of rates made by the overseers of the poor of the township of Middleton and due or owing at the appointed day shall be collected and recovered by the overseers of the poor of the township of Hunslet. Arrears of
rates.

62. Subject to the provisions of section 60 (Supplementary provisions as to guardians) of the Act of 1894 the following provisions shall have effect :— Guardians
and rural
district
councillor.

- (1) The number of guardians for the township of Hunslet shall be increased from thirteen to fourteen :
- (2) The township shall for the purposes of the election of guardians be divided into four wards :
- (3) The existing wards of the existing township of Hunslet shall remain unaltered and the persons who at the appointed day are holding the office of guardians of the poor representing those wards respectively shall continue to represent those wards as if this Act had not been passed :
- (4) The added area shall form a new ward to be called the Middleton Ward and the person who at the appointed day holds the office of guardian of the poor representing

A.D. 1919.
—

the township of Middleton shall represent that ward until he would have retired if this Act had not been passed but shall cease to be a member of the Hunslet Council.

Property
&c. of Huns-
let Council.

63. Subject to the provisions of this Act—

- (1)—(a) All property and liabilities which immediately before the appointed day are vested in or attach to the Hunslet Council in relation exclusively to any part of the added area shall by virtue of this Act be transferred to and vest in and attach to the Corporation as urban sanitary authority and any property and liabilities vested in or attaching to the Hunslet Council in relation to any part of the added area conjointly with any other area shall be a matter for adjustment under section 62 of the Act of 1888:
- (b) Provided that the waterworks transferred to the Corporation by virtue of this section shall be deemed part of the waterworks undertaking of the Corporation and that any liabilities in relation to the waterworks so transferred which by virtue of this section attach to the Corporation shall be deemed to be liabilities incurred in respect of that undertaking:
- (2) All arrears of rates made by the overseers of the poor of the township of Middleton for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 shall when collected and recovered be applied towards the discharge of any precept of the Hunslet Council which at that day shall be in force and not satisfied and the balances (if any) shall be paid to the Corporation:
- (3) For the purposes of the application of section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Act that section shall have effect as if in subsections (5) (6) and (7) thereof the expression “council” included any authority affected by this Act or by anything done in pursuance of this Act and as if in the case of any such authority not otherwise empowered to borrow under

any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction: A.D. 1919.

Provided that for the purposes of the application of section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Act so far as it relates to the amalgamation of the added area with the existing township of Hunslet that section shall have effect—

(a) as if the overseers of the township of Hunslet and the persons who immediately before the appointed day were the overseers of the township of Middleton or where the circumstances of the case so require any persons who may be substituted for those persons by an order of the Local Government Board were within the meaning of the said section as applied by this section authorities affected by this Act;

(b) as if the poor rate or any other rate leviable in pursuance of the said section as applied by this section were substituted for any fund mentioned in the section; and

(c) as if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended (that is to say)—

“ (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.”

A.D. 1919.

“(7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Local Government Board may authorise or direct.”

Parish
council.

64.—(1) Subject to the provisions of this Act any powers and duties transferred by the Act of 1894 to the parish council or to the parish meeting of the township of Middleton shall be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if that township had been included in the existing city on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred for the purpose or by virtue of the said powers and duties shall by virtue of this Act be transferred to and vest in and attach to the persons and authorities aforesaid.

(2) Any property or liabilities of the said parish council held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall by virtue of this Act be transferred to and vest in and attach to the Corporation.

Audit of
accounts
of parish
council.

65.—(1) The accounts of the parish council of the township of Middleton and of their committees and officers shall be made up to the appointed day and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Act had not been passed.

(2) Provided that the audit may be held as soon as practicable after the appointed day any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the city.

Settlement
and removal
of the poor.

66. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Act the following provisions shall have effect (that is to say):—

(1) Every person who at the appointed day has acquired or is in the course of acquiring a settlement in the existing township of Hunslet or in the township of Middleton by reason of any residence completed or in the course of completion or of any act or thing

done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation in either of the said townships shall be deemed to have acquired or to be in the course of acquiring a settlement in the township of Hunslet: A.D. 1919.

- (2) Every person who at the appointed day has acquired or is in the course of acquiring a status of irremovability from the Hunslet Union by reason of residence in the existing township of Hunslet or in the township of Middleton shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the township of Hunslet.

67. Nothing in this Act shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish affected by this Act but any power vested in trustees to acquire land in the borough of Leeds or in the existing city shall extend to lands in the city as extended by this Act. Ecclesiastical divisions and charities.

68. Until new valuation lists are in force the valuation list of the township of Middleton shall be deemed to form part of the valuation list of the township of Hunslet. Valuation lists.

69. Subject to any future revision the basis or standard of the county rate for the county shall be altered by the omission therefrom of the amount appearing therein as the total annual value of the property in the township of Middleton. County rate basis.

70. For the purposes of the registers of persons entitled to vote at an election of members of Parliament of the registers of local government electors and of jury lists the parishes affected by this Act shall be deemed to continue unaltered until the new registers and lists come into operation. Saving for existing lists of parliamentary voters &c.

71. This Act shall not alter the area of any parliamentary borough or parliamentary county or any division thereof. Saving as to parliamentary divisions.

72. Notwithstanding the alterations effected by this Act all contribution orders made by the guardians of the poor of the Hunslet Union and all precepts made by the Hunslet Council before the appointed day shall be valid in law as if this Act had not been passed. Saving for contribution orders and precepts.

A.D. 1919.

PART VII.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to
borrow.

73.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods mentioned in the third column of the said table (namely):—

1.	2.	3.
Purpose.	Amount.	Period.
	£	
(a) For and in connexion with the purchase of land in pursuance of the agreement set forth in the Second Schedule and paying any sum to the Middleton Company thereunder and the purchase under the powers of this Act of further lands for the purposes of the Housing Acts or of the section of this Act whereof the marginal note is "Use of lands."	The sum requisite	80 years from the date or dates of borrowing.
(b) For the purchase of land for the tramways and tramroads authorised by this Act.	The sum requisite	60 years from the date or dates of borrowing.
(c) For the construction of those tramways and tramroads.	191,653	30 years from the date or dates of borrowing.
(d) For the provision of the electrical equipment and the construction of the other works necessary for the tramways and tramroads authorised by this Act.	30,273	20 years from the date or dates of borrowing.
(e) For the purchase of land for the street improvements authorised by this Act	The sum requisite	60 years from the date or dates of borrowing.
(f) For the construction of the said street improvements.	12,200	50 years from the date or dates of borrowing.
(g) For the purchase of land and easements for and the construction of the works authorised by Part V. (Water) of this Act.	17,260	50 years from the date or dates of borrowing.
(h) For paying the costs charges and expenses of this Act.	The sum requisite	5 years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part III. (Tramways) of this Act and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that Part:

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed. A.D. 1919.

74.—(1) The moneys authorised to be borrowed under the provisions of this Act shall be and the same are hereby declared to be principal moneys within the meaning of the Leeds Corporation (General Powers) Act 1901 and of the Act of 1905 and the provisions of those Acts with respect to principal moneys the borrowing or raising of money and the payment off of borrowed money shall subject to the provisions of this Act apply accordingly. Moneys borrowed to be principal moneys within meaning of Acts of 1901 and 1905.

(2) The yearly sums required to be provided in respect of the principal moneys borrowed under the provisions of the last preceding section of this Act shall—

As regards moneys borrowed for the purposes (a) (e) (f) and (h) mentioned in the said section be defrayed as expenses payable out of the city fund;

As regards moneys borrowed for the purposes (b) (c) and (d) mentioned in the said section and moneys borrowed with the consent of the Board of Trade be defrayed as expenses of the tramways undertaking of the Corporation on revenue account in accordance with section 97 of the Act of 1905;

As regards money borrowed for the purposes (g) mentioned in the said section be defrayed as expenses of the water undertaking of the Corporation on revenue account;

As regards moneys borrowed with the consent of the Local Government Board be defrayed out of such fund or revenue as may be prescribed by that Board.

75. Section 30 (As to temporary borrowing) of the Act of 1913 shall have effect as if for subsection (7) of that section the following provision were substituted (namely):— Extension of powers as to temporary borrowing.

“(7) The provisions of this section shall cease to be in force at the expiration of fifteen years from the thirty-first day of March nineteen hundred and fourteen unless they shall have been continued by Act of Parliament or by an order made by the Local Government Board which order that Board are hereby empowered to make and in the event of

A.D. 1919.

that Board making any such order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to be necessary."

Expenses of
execution of
Act.

76. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the city fund.

Audit of
accounts.

77. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Inquiries by
Local Gov-
ernment
Board.

78.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

For protec-
tion of Mid-
land Rail-
way Com-
pany.

79. In executing the works by this Act authorised where the same will cross over or otherwise affect any railway siding or other part of the works or property (which railway siding works and property are hereinafter called "the railway") of the Midland Railway Company (hereinafter called "the Midland Company") the Corporation shall (except so far as may be otherwise agreed between the Midland Company and the Corporation in writing under their respective common seals) be subject to the following conditions:—

(1) Tramway No. 1 and the footpath referred to in Street Work No. 2 by this Act authorised shall be carried over the railway of the Midland Company by means

of a girder bridge (hereinafter called "the said bridge") which shall span over the whole width of the Midland Company's property in three spans the face of each abutment being at the Midland Company's boundary and the two intermediate piers being steel stanchions on each side of the two mid-most existing lines of rails each stanchion being parallel to and not less than five feet two inches distant from the nearest rail thereof The said bridge shall have a clear headway throughout of not less than fifteen feet above the upper surface of the Midland rails:

A.D. 1919.

- (2) All works to be done by the Corporation in the exercise of the powers conferred by this Act in any way affecting the railway of the Midland Company shall be executed by and in all things at the expense of the Corporation and under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the Midland Company (hereinafter called "the said engineer") according to plans sections specifications and drawings to be reasonably approved by him Provided that if within one month after the receipt of any such plans sections specifications and drawings the said engineer does not give to the Corporation notice of his objections thereto he shall be deemed to have approved thereof:
- (3) The superstructure of the existing Jack Lane footbridge shall be removed by the Midland Company at their own expense and such superstructure shall remain the property of the Midland Company:
- (4) If within one month after the receipt of any such plans sections specifications and drawings the Midland Company give to the Corporation notice that they desire themselves to construct so much of the works or any part thereof as will affect the railway of the Midland Company the Midland Company may themselves execute such works and recover the reasonable costs from the Corporation:
- (5) If any subsidence shall occur by which the level of the said bridge shall be lowered so that the headway prescribed by this section be not maintained then the

A.D. 1919.

Corporation shall at their own cost when called upon by the Midland Company to do so raise or lift the said bridge to the height above ordnance datum at which it was originally constructed under the provisions of this Act:

- (6) The said bridge and other works of the Corporation which affect the railway of the Midland Company shall be at all times maintained in good repair and condition at the expense of the Corporation and to the reasonable satisfaction of the said engineer and if and whenever the Corporation fail to do so after fourteen days' notice given by the Midland Company to the Corporation the Midland Company may make and do in and upon as well the lands of the Corporation as their own lands all such works repairs and things as they may reasonably think necessary in that behalf and the reasonable expense thereof shall be repaid to the Midland Company by the Corporation:
- (7) If by reason of the execution of any of the works or any proceedings of the Corporation or the failure of any such works or any act or omission of the Corporation or of their contractors the railway of the Midland Company shall be damaged such damage shall forthwith be made good by the Corporation at their own expense or in the event of their failing so to do then the Midland Company may make good the same and recover the reasonable expense thereof with costs against the Corporation and if any interruption shall be occasioned to the traffic of or upon the railway of the Midland Company by reason of any of the matters or causes aforesaid the Corporation shall pay to the Midland Company all costs and expenses to which the Midland Company may be put as well as compensation to be recoverable by the Midland Company from the Corporation:
- (8) The Corporation shall bear and on demand pay to the Midland Company the reasonable expense of the employment by the Midland Company during the execution repair or maintenance of any work affecting the railway of the Midland Company of a sufficient number of inspectors watchmen and signalmen to be

A.D. 1919.
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appointed by the Midland Company for watching and signalling the same with reference to and during the execution of any such work of the Corporation and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors:

- (9) If in the opinion of the Midland Company or in case of difference between them and the Corporation of an arbitrator to be appointed as hereinafter provided it shall be reasonably necessary for the Midland Company to purchase or pay compensation for any minerals required to be left unworked for the protection and safety of any works constructed under the powers of this Act and if such purchase or the payment of such compensation would not have been necessary in the absence of such works the Corporation shall pay to the Midland Company all costs and expenses incurred by them in relation to any such purchase or payment of compensation:
- (10) If by reason of the construction of the said bridge it shall become reasonably necessary to add to or alter any signal cabin signal posts electrical power lines telegraph poles or wires or other similar works upon the railway the same shall be so added to or altered by the Midland Company and the reasonable expenses of such additions and alterations and of the maintenance thereof shall be repaid to the Midland Company by the Corporation:
- (11) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the Midland Company at any point where the Tramway No. 1 and the footpath referred to in Street Work No. 2 will be constructed over the railway of the Midland Company it is reasonably advisable in order to guard against any danger which might arise from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus belonging to or maintainable by the Midland Company should be cabled or otherwise altered the Midland Company may execute any works reasonably necessary

A.D. 1919.
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for such alterations and the reasonable expense of executing such works shall be repaid to them by the Corporation :

- (12) The Corporation shall take all precautions reasonably practicable (including the provision of insulated joints in the Middleton Company's rail where they join up to the rails of the Midland Company) in establishing and maintaining their electric lines and circuits and other works and also in working their tramways so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances within the property of the Midland Company or to interfere with the working of any wire line or apparatus from time to time constructed or used within the property of the Midland Company for the transmission of electrical power for telegraphic telephonic or electric signalling communication or with the currents in such wire line or apparatus :

The reasonable cost of any alterations to the telegraphic telephonic or signal wires or apparatus of the Midland Company or of their increase due to the presence of the works by this Act authorised or any increased cost of maintenance of such wires or apparatus due to the same cause shall be paid by the Corporation to the Midland Company :

- (13) Whenever and so often as the Midland Company shall in the exercise of their existing powers require to widen or alter the railway under the said bridge and it shall be reasonably necessary for such purpose that the working and user of the tramway over the said bridge should be wholly or partially temporarily stopped or delayed or that such tramway should be temporarily diverted or wholly or in part temporarily taken up or removed they shall except in cases of emergency (when they shall give the longest notice practicable) give to the Corporation one month's notice in writing requiring such stoppage delay or diversion taking up or removal and the working and user of such tramway shall be stopped or delayed or such tramway shall be diverted or taken up or removed accordingly at the expense of the Corporation

A.D. 1919

and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as may be absolutely necessary for effecting any such purpose as aforesaid and without the Midland Company being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto:

- (14) The Corporation shall also pay to the Midland Company any reasonable additional expense which they may incur or be put to in effecting any such widening or altering of their railway by reason of the existence of the said bridge or tramway or any of the works connected therewith:
- (15) If the Midland Company at any time hereafter be desirous for the purpose of widening the railway or of forming branches or sidings to any existing or intended collieries works or manufactories of constructing a bridge or bridges over or under the tramways or street works by this Act authorised the Corporation shall afford to the Midland Company all reasonable and proper facilities at the reasonable cost of the Midland Company for the construction of such bridge or bridges Provided nevertheless that the plans specifications and drawings of any such works shall be submitted to and reasonably approved in writing by the principal engineer for the time being of the Corporation Provided that if within one month after the receipt of any such plans specifications and drawings the said engineer does not give to the Midland Company notice of his objections thereto he shall be deemed to have approved thereof:
- (16) The Corporation shall not (except with the consent of the Midland Company under their common seal) purchase or acquire any lands or property of the Midland Company but the Corporation shall acquire only such an easement over the railway of the Midland Company as may be necessary for constructing or maintaining the works by this Act authorised and shall pay to the Midland Company for any such easement to be acquired by them such sum as may

A.D. 1919.
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be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts as modified by this Act:

- (17) Except as in this section otherwise expressly provided for any dispute or difference which may arise between the Midland Company and the Corporation with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof or as to the amount of the reasonable expense of executing any work shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President for the time being of the Institution of Civil Engineers on the application of the Midland Company or the Corporation and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Costs of Act.

80. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1919.

THE FIRST SCHEDULE.

PART I.

LOCAL ACTS.

Section 4.

Session and Chapter.	Title or Short Title.
1 Edw. 7. c. cclv. - - -	The Leeds Corporation (General Powers) Act 1901.
1 Edw. 7. c. cclvi. - - -	The Leeds Corporation Water Act 1901.
4 Edw. 7. c. ccx. - - -	The Leeds Corporation (Waterworks) Railway Act 1904.
5 Edw. 7. c. i. - - -	The Leeds Corporation (Consolidation) Act 1905 (including the parts and sections of Acts of Parliament which are excepted from repeal by that Act and are set forth in the Fifteenth Schedule to that Act).
7 Edw. 7. c. lxxxi. - - -	The Leeds Corporation Act 1907.
8 Edw. 7. c. lxxviii. - - -	The Leeds Corporation Act 1908.
10 Edw. 7. and 1 Geo. 5. c. cxliv.	The Leeds Corporation Act 1910.
3 & 4 Geo. 5. c. xliii. - - -	The Leeds Corporation Act 1913.
4 & 5 Geo. 5. c. cxli. - - -	The Leeds Corporation Act 1914.

PART II.

CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
59 & 60 Vict. c. ccxxxviii.	The Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) Act 1896.	The Leeds (Housing of Working Classes) Order 1896.
1 Edw. 7. c. clxxi.	The Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) (No. 2) Act 1901.	The Leeds (Housing of Working Classes) Order 1901.
5 Edw. 7. c. cxci.	The Tramways Orders Confirmation (No. 1) Act 1905.	The Leeds Corporation Tramways Order 1905.

A.D. 1919.	Session and Chapter	Short Title.	Order thereby confirmed.
	7 Edw. 7. c. cxvii.	The Tramways Orders Confirmation Act 1907.	The Leeds Corporation Tramways Order 1907.
	2 & 3 Geo. 5. c. cxxxviii.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1912.	The Leeds (Extension) Order 1912.
	4 & 5 Geo. 5. c. cxvii.	The Electric Lighting Orders Confirmation (No. 2) Act 1914.	The Leeds Electric Lighting (Extension) Order 1914.
	5 & 6 Geo. 5. c. xciii.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1915.	The Leeds (Rating &c.) Order 1915.

THE SECOND SCHEDULE.

Section 5 AN AGREEMENT made the 31st day of December 1918 between the MIDDLETON ESTATE AND COLLIERY COMPANY LIMITED whose registered office is situate at Middleton near Leeds in the county of York (hereinafter called "the company") of the one part and the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF LEEDS (hereinafter called "the Corporation") of the other part.

WHEREBY it is agreed as follows that is to say :—

1. Subject as hereinafter provided the company shall sell and the Corporation shall purchase (subject as hereinafter reserved) First All that piece or parcel of land containing 326 acres the particulars whereof are delineated on the map or plan marked A and signed in duplicate by Charles Herman Merivale on behalf of the company and by William Thomas Lancashire the city engineer on behalf of the Corporation and thereon surrounded by a verge line coloured green and further described in the First Schedule hereto free from incumbrances Together with the timber standing thereon at the date of this agreement And secondly All those pieces or parcels of land secondly described in the Second Schedule hereto free from incumbrances but save and except the timber standing thereon which is hereby reserved to the company.

2. The consideration for the said sale shall be the sum of 45,640*l.* being equal to the amount which would be paid for 326 acres at 140*l.* per acre and if the land firstly herein described and shown on the plan marked A shall be found upon an accurate survey to be less or more than 326 acres

the acreage sold shall be proportionately increased or decreased as the case may require. The Corporation shall also pay in respect of the land included in the premises firstly and secondly herein described to any tenants thereof of the company the compensation to which they may respectively be entitled in respect of severance tenant right or otherwise such amount in case of dispute to be settled by arbitration as herein provided. A.D. 1919.

3. The company reserve to themselves their successors and assigns for a term of two years from the date of this agreement all the Beeston seam of coal under that portion of the land firstly herein described which is hatched red on the said plan together with all such rights and powers as may be necessary to enable them to win work get carry away and dispose of the same within the said period and in such manner as they shall think fit and so that they may effect the same by underground workings only and may by such winning working and getting as aforesaid let down the surface without being liable to pay any compensation for damage done to the surface or any buildings thereon by such winning working or letting down.

4. The company also reserve to themselves their successors and assigns full liberty and power to use the existing underground roadways which are shown on the said plan and thereon marked with a brown line and also on making payment as hereinafter provided to make new underground roadways in or through the Beeston seam of coal under the lands firstly herein described for the passage of air or water or for haulage purposes as will enable the company to win work get and carry away the coal or other minerals now being or which may hereafter be worked by them under any land which may lie outside the boundaries of the land which is hereby agreed to be sold to the Corporation and to convey the same to any pits which may be worked by the company. Provided nevertheless that the company shall not make any new roadways outstroke drifts or passages for any of the purposes aforesaid under the land firstly herein described without first obtaining the consent in writing of the Corporation or their mineral surveyor (such consent not to be unreasonably withheld) and that no such roadways outstroke drifts or passages shall exceed twelve feet in width or six feet in height and that no roadway drift or passage shall be nearer than twenty-two yards to any other roadway drift or passage and that the said roadways drifts and passages shall be so constructed and used that no damage or injury can be caused to the surface of the land which is firstly herein described by such construction or user. Provided further that the company shall pay to the Corporation for the coal which shall have been worked or removed in making any such new underground roadways outstroke drifts or passages a royalty at the rate of 25*l.* per foot thick per acre and so on in proportion for any less quantity than an acre and for any less thickness than a foot. But that they shall

A.D. 1919. — pay no wayleave rent for any coal which shall be brought through such drifts and passages from outside the area sold to the Corporation.

5. The Corporation shall so soon after the termination of the war and the completion of the purchase as they shall be able to obtain the necessary facilities for the acquisition of the materials required fence in where not already fenced in the land firstly herein described on all sides thereof and for ever thereafter keep the same so fenced with a suitable fence.

6. The company further reserve to themselves their successors and assigns all mines minerals and mineral substances in or under the premises herein secondly described together with full power for the company and the persons deriving title under them to such mines minerals and mineral substances to win work get carry away and dispose of the same by underground workings and without any obligation to leave any subjacent or lateral support for the surface or any buildings or railway or tramway for the time being erected thereon and for the purpose of such workings from time to time or at any time to do all acts and things necessary or proper for working or getting such mines minerals or mineral substances but so nevertheless that nothing herein contained shall confer on the company any right to enter on the surface and that if they shall let down the surface and thereby cause damage to the railway tramroad or tramway hereinafter mentioned or any buildings plant or appliances properly used in connexion therewith they shall pay reasonable compensation to the Corporation in respect thereof the amount of such compensation to be settled in case of difference by arbitration as herein provided.

7. The premises hereinbefore secondly herein described shall be used only for the purpose of making maintaining and working a railway tramroad or tramway thereon (including the widening of Jack Lane) with all necessary buildings plant and appliances to be used in connexion therewith and for the laying down thereon thereover or thereunder such gas mains and electric cables as the Corporation may from time to time determine and provided they shall have been able to obtain the sanction of the appropriate Government department or departments to the raising of the capital moneys required for the construction of the said railway tramroad or tramway and for the acquisition of the materials requisite for such construction the Corporation shall within eight years next after the passing of the Act provided they shall have been able to obtain from Parliament any necessary extension of the time limited by the Act for the completion of the said railway tramroad or tramway make or cause to be made such railway tramroad or tramway and shall complete the same and shall after such last-mentioned completion of the said railway tramroad or tramway commence and thereafter continue to run trains or trams over the same at all convenient hours of the day or night Provided nevertheless that if the Corporation shall obtain parliamentary powers and facilities in respect of the raising of capital moneys and

acquisition of material as aforesaid for the construction of and shall construct and complete within the period limited by Parliament for such completion or such extension of that period as may be allowed by Parliament from time to time not exceeding in all eight years from the date of the passing of the Act a tramway along Moor Road Hunslet in the said city connecting the existing tramway in Dewsbury Road with the said proposed railway tramroad or tramway the Corporation shall not in any event be under any obligation to construct such portion of the said railway tramroad or tramway as will lie to the north of Moor Road aforesaid until such time as they shall in their absolute discretion think fit Provided nevertheless that if the Corporation shall not construct the railway tramroad or tramway from Jack Lane to Moor Road aforesaid within eight years from the passing of the Act before referred to this agreement shall read as if no reference were contained therein with regard to any land belonging to the company which lies to the north of Moor Road aforesaid. A.D. 1919.

8. The Corporation shall when required thereto by the company provide stations or stopping-places at the points marked "Station" on the said plan or at such other points in lieu thereof as shall be mutually agreed upon between the company and the Corporation and shall cause all trains or trams (other than through running trains or trams) to stop at such points when it is necessary to do so to pick up or set down passengers.

9. The Corporation when required to do so by the company shall make and thereafter maintain and keep in repair a level crossing at or near the point marked X on the said plan to enable the company to carry a siding with a double track of rails from the Midland Railway Company's railway over the railway tramroad or tramway hereinbefore provided to be made to or beyond the hereditaments of the company which lie to the west of such railway tramroad or tramway and the company reserve to themselves their successors and assigns and their or his lessees tenants or grantees full right and liberty by means of such siding as aforesaid to cross over such railway tramroad or tramway with engines trucks waggons or other vehicles either loaded or unloaded by day or night (except during the periods between sunset and sunrise in which the Corporation shall be running their service of trains or trams over the said railway tramroad or tramway).

10. The Corporation shall when requested by the company so to do make and thereafter maintain level crossings at all such stations or stopping-places provided in pursuance of clause 8 hereof as abut upon any public highway or footpath and the company reserve to themselves their successors and assigns and their or his lessees tenants or grantees full rights at all times to pass and re-pass with or without carts and other vehicles horses and other animals over the said level crossings.

11. The Corporation shall before allowing trains or trams to pass over or along the premises secondly herein described fence off both sides

A.D. 1919. of the said premises (except where the said premises adjoin the existing mineral railway belonging to the company) with a suitable fence and shall for ever thereafter repair and maintain such fence.

12. The company will free of charge provide ballast for the making of the said proposed railway tramroad or tramway such ballast to be taken from the company's pits or spoil heaps by the company and delivered by the company in their trucks at such places alongside the line of the company's mineral railway between the points marked A and B on the said plan as the Corporation shall from time to time direct Provided nevertheless that this clause shall not make it compulsory for the company to deliver any ballast during such time as their pits may be closed down either temporarily or permanently owing to strikes stoppages or any cause whatever.

13. The Corporation shall during the contruction of the said railway tramroad or tramway fence off the same or otherwise protect the public from injury which may be caused by the making of such railway tramroad or tramway and shall indemnify the company against any claim which may be made against them in respect of any such injury or damage.

14. The company shall permit the Corporation if they so desire to use their mineral railway for the purpose of conveying materials plant and appliances to the site of the said railway tramroad or tramway and to the piece or parcel of land firstly hereinbefore described upon terms to be agreed between the company and the Corporation or failing agreement to be settled by arbitration as hereinafter provided and shall also permit the Corporation to use on similar terms the company's wire rope tramway for the purpose aforesaid.

15. It is a condition of this agreement that the Corporation in the next ensuing session of Parliament shall apply for powers to enable them to construct the said proposed railway tramroad or tramway and the connexion therewith with the existing tramways of the Corporation and also to provide for the inclusion of the parish of Middleton within the Leeds city boundary Provided that as a term of such inclusion it shall be provided that during a period of fifteen years from the date of such inclusion the rates to be charged and paid in respect of any hereditament within the said parish shall not exceed a higher amount in the £ than five shillings and eightpence.

16. The company shall when requested by the Corporation so to do deliver to the Corporation an abstract of their title to the premises such abstract to commence—

As to the premises herein firstly described:—

- (1) As to part thereof (being that part coloured blue on the said plan and thereon and in the First Schedule hereto numbered 1) with an indenture of conveyance dated the 14th day of August 1865 and made between Robert Plummer of the

first part John Clayton of the second part Ellen Bulmer and William Bramwell Ferguson of the third part and Francis William Tetley of the fourth part : A.D. 1919.

- (2) As to other part thereof (being that part known as Bleach Ground Farm coloured red on the said plan and thereon and in the said First Schedule hereto numbered 2) :—

(a) As to the surface thereof with an indenture of conveyance dated the 17th day of October 1893 and made between William Baxter of the first part Mary Hollings John William Pollard Frank Parker and William Sayles Arnold of the second part and the company of the third part ;

(b) As to the minerals thereunder with the said indenture of 14th August 1865 :

- (3) As to other part thereof (being that part forming part of Colliery Farm coloured green on the said plan and thereon and in the said First Schedule hereto numbered 3) with an indenture of conveyance dated the 30th day of November 1875 and made between the Ecclesiastical Commissioners for England of the first part the Reverend John Gott of the second part the Corporation of the Patrons of the Church of St. Peter's Leeds of the third part and the company of the fourth part :

- (4) As to other part thereof (being that part known as Glasshouse Farm coloured red on the said plan and thereon numbered 4 and 5) :—

(a) As to the surface of 4 and 5 and the minerals under 4 with an indenture of conveyance dated the 2nd day of April 1898 and made between Robert William Bower of the one part and the company of the other part ;

(b) As to the minerals under 5 with the said indenture of the 14th August 1865 :

- (5) As to other part thereof (being that part known as Mill Farm coloured green on the said plan and thereon and in the First Schedule hereto numbered 6) :—

(a) As to the surface with an indenture of conveyance dated the 30th day of January 1874 and made between William Wordsworth of the first part Joseph Parkin of the second part and the company of the third part ;

(b) As to the minerals thereunder with the said indenture of 14th August 1865 :

- (6) As to other part thereof (being coloured red on the said plan and thereon and in the First Schedule hereto numbered 7)

A.D. 1919.
— —

with an indenture dated the 14th day of January 1899 and made between Margaret Harrison of the one part and the company of the other part :

(7) As to the remaining part thereof (being that part coloured yellow on the said plan and thereon and in the First Schedule hereto numbered 8) :—

(1) As to the surface with an indenture dated the 22nd day of April 1890 and made between Charles Brandling of the one part and the company of the other part ;

(2) As to the minerals thereunder with the said indenture of 14th August 1865 :

As to the premises herein secondly described :—

(1) As to part thereof with an indenture dated the 1st day of November 1878 and made between Robert Addyman of the first part John Routh of the second part Richard Britton Alfred Britton and John Broadbent Britton of the third part and the company of the fourth part :

(2) As to other part thereof with the said indenture of the 14th day of August 1865 :

(3) As to other part thereof with an indenture dated the 2nd day of August 1872 and made between George Carter of the first part Alfred Carter of the second part and the company of the third part :

(4) As to other part thereof with an indenture dated the 24th day of April 1873 and made between Charles Fortescue Tagart Henry Webster Blackburn and William Naylor of the first part the said Henry Webster Blackburn and Sarah Naylor of the second part and the company of the third part :

(5) As to other part thereof with an indenture dated the 22nd day of June 1874 and made between John Stewart Hardy William Wickham Wickham Reginald Hardy and John Dawson of the first part the Low Moor Company of the second part and the company of the third part :

(6) As to the remaining part thereof with an indenture dated the 21st day of December 1906 and made between the Low Moor Company Limited of the first part William Wickham Wickham the Right Honourable John Stewart Baron Medway and Sir Reginald Hardy of the second part and the Company of the third part.

17. The Corporation shall make in writing and deliver to the solicitors of the company objections and requisitions (if any) to the title shown by the abstract within one month after the delivery thereof and all objections

and requisitions which shall not be made and sent as aforesaid within the time specified shall be deemed to have been waived and for this purpose time shall be of the essence of the contract. A.D. 1919.

18. In case the Corporation shall make any objection to or requisition on the title which the company shall from any cause or on any grounds whatsoever be unable or unwilling to answer or comply with the company shall be at liberty (notwithstanding any attempt to answer or comply with such objection or requisition or any previous or pending negotiation or litigation) at any time by notice in writing to the Corporation to rescind the sale. In that event the Corporation shall not be entitled to any costs or compensation or other payment whatsoever but the Corporation may within seven days after receiving the notice to rescind withdraw the objection or requisition in which case the notice to rescind shall be deemed to be withdrawn also.

19. The admeasurements and descriptions of the property **are** believed and shall be assumed to be correct and any error relating thereto shall neither annul the sale nor entitle either party to compensation. If any misstatement error or omission (not relating to such admeasurements and descriptions) shall be discovered affecting the nature or value of the premises the same shall not annul the sale but if it shall have been pointed out before the completion of the purchase and not otherwise compensation on account thereof shall be allowed or given by the company or Corporation as the case may require such compensation to be settled (in case of difference) by arbitration as herein provided.

20. The premises are sold subject to the land tax and tithe rentcharge (if any) and to any small payments to which the same may be liable and ~~to the tenancies~~ (if any) and to all rights of way lights drains and easements affecting the same and particularly as to the premises coloured red on the said plan and thereon and in the said First Schedule numbered 4 and 5 with the full benefit of and subject to all covenants conditions stipulations and restrictions mentioned or referred to in the said indenture of 2nd April 1898 and the Corporation shall indemnify the company their successors and assigns from and against all actions claims and demands whatsoever in respect of all such of the said covenants conditions stipulations and agreements as affect the land hereby contracted to be sold and are now subsisting and capable of taking effect.

21. It shall be assumed that every former owner of any part of the property whose widow (if any) would have been entitled to dower or freebench and is not mentioned in the title did not leave a widow.

22. The company are selling as beneficial owners.

23. The Corporation shall admit the identity of the property purchased by them with that described in the muniments of title offered by the company upon the evidence afforded by a comparison of the description in the particulars and muniments and a statutory declaration to be obtained

A.D. 1919. (if they shall require it) at the expense of the Corporation that the property has been enjoyed consistently with the abstracted title for the past twenty years.

24. The Corporation shall assume that the minerals under the piece of land coloured yellow and numbered 8 on the said plan and in the said First Schedule passed to the company's predecessors in title under the said indenture of the 14th August 1865 the said minerals having been conveyed by an indenture dated the 31st December 1835 to trustees for the creditors of certain members of the Brandling family who as appears by the said indenture of the 14th August 1865 put up for sale by auction all the hereditaments and premises comprised in the said trust deed for creditors not then sold and disposed of and agreed to sell the same to the company's predecessors in title. The trustees subsequently deduced their title to such minerals to the company's predecessors in title but by inadvertence any specific reference to them was omitted in the indenture of 14th August 1865. An abstract of the said indenture of 31st December 1835 will be produced for inspection by the Corporation but no requisition or objection shall be raised or made in relation thereto or in relation to the said omission.

25. Any will deed or other document which may not have been registered or properly registered in the county register or any deed or other document dated prior to the 16th day of May 1888 which may be unstamped or improperly stamped shall if practicable be registered or re-registered stamped or properly stamped at the expense of the Corporation if required by them but no objection or delay in the completion of the purchase shall be made in respect thereof.

26. The Corporation shall on the day fixed for the completion of the purchase (hereinafter called "the day of completion") pay the purchase money at the offices of Messrs. Nelson Eddisons & Lupton the company's solicitors No. 34 Albion Street Leeds and the purchase shall be then and there completed and thereupon the company and all other necessary parties (if any) will execute a proper assurance of the premises to the Corporation such assurance to be prepared by and at the expense of the Corporation and to be left by them for execution by the company at the offices aforesaid not less than fourteen days before the day of completion.

27. The rents or possession of the premises shall be received or retained and all rates taxes and outgoings payable for or in respect thereof shall be paid by the company up to the day of completion and as from that date the rents or possession shall be taken by the Corporation who shall thenceforth pay all the rates taxes and outgoings and such rates taxes and outgoings shall if necessary for the purpose of this stipulation be apportioned.

28. If from any cause whatever the purchase shall not be completed on the day fixed for completion the Corporation shall as from that day pay interest for the said purchase money to the company after the rate of 5l. per centum per annum until the actual completion of the purchase.

A.D. 1919.

29. If the said premises or any part thereof shall be destroyed or damaged by fire before the completion of the purchase the moneys payable under any existing policy of insurance of the said premises shall be applied in reinstating the same or shall be paid to the Corporation at their option.

30. Forthwith upon the Bill which the Corporation are promoting in the present session of Parliament intituled the Leeds Corporation Bill 1919 passing into law and becoming an Act of Parliament the Corporation shall apply to the appropriate Government department or departments for their sanction to the borrowing by the Corporation of the moneys required for paying the said purchase money and the purchase shall be completed within three calendar months from the date on which such sanctions shall have been obtained.

31. The present general conditions of sale of the Yorkshire Union of Law Societies shall be deemed to be incorporated herein and shall apply to this sale so far as they are applicable to a sale by private agreement and are not varied by or inconsistent with the express terms of these presents.

32. If any question shall arise between the company and the Corporation as to the true intent and meaning of any of the provisions of this agreement or as to anything to be done or not to be done thereunder the same shall be referred to a single arbitrator to be appointed failing agreement between the parties and on the application of either of them by the Local Government Board and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply.

33. This agreement is subject to the approval of Parliament and to such alterations as shall be made therein by Parliament and shall be scheduled to the Bill but in the event of Parliament making any material alteration thereto or failing to grant any of the powers and provisions for which as hereinbefore provided the Corporation shall apply to Parliament it shall be competent for either party to withdraw from the agreement.

In witness whereof the company and the Corporation have hereto affixed their respective common seals the day and year first before written.

The FIRST SCHEDULE above referred to.

1. All that land coloured blue on the plan hereto annexed and thereon numbered 1 and situate in Middleton aforesaid.

2. All that land coloured red on the said plan and thereon numbered 2 called the Bleach Ground Farm situate in the township of Middleton in the parish of Rothwell (except such parts thereof as have been conveyed by the company or their predecessors in title to the Great Northern Railway Company or their predecessors in title).

A.D. 1919.

3. All that land coloured green on the said plan and thereon numbered 3 forming part of the Colliery Farm situate in Middleton in the parish of Rothwell aforesaid.

4. All that land coloured red on the said plan and thereon numbered 4 and 5 called the Glasshouse Farm situate at Middleton in the parish of Rothwell aforesaid.

5. All that land coloured green on the said plan and thereon numbered 6 called the Mill Farm situate at Middleton aforesaid (except such parts thereof as have been conveyed by the Company or their predecessors in title to the Great Northern Railway Company or their predecessors in title).

6. All that land coloured red on the said plan and thereon numbered 7 situate at Middleton in the parish of Rothwell aforesaid.

7. All that land coloured yellow on the said plan and thereon numbered 8 near Mill Wood situate in the township of Middleton in the parish of Rothwell aforesaid.

The SECOND SCHEDULE above referred to.

All those pieces of land delineated on the map or plan marked B and signed in duplicate by the said Charles Herman Merivale on behalf of the company and by the said William Thomas Lancashire the city engineer on behalf of the Corporation and thereon coloured pink And also a strip or piece of land twenty-two yards wide for its whole length lying between the points marked C and D on the plan marked A hereinbefore referred to and in the situation shown by the blue line marked on the said plan between such last-mentioned points.

The common seal of the Middleton Estate and Colliery }
Company Limited was affixed hereto in the }
presence of

L.S.

GEORGE MARCH }
JAS. E. MAUDE } Directors.
ALFRED D. DIXON Secretary.

The common seal of the lord mayor aldermen and }
citizens of the city of Leeds was affixed hereto in the }
presence of

L.S.

CHARLES H. WILSON Chairman of the Finance
and Parliamentary Committee.
J. MITCHELL City Treasurer.

The THIRD SCHEDULE.

A.D. 1919.

LIST OF PROPERTIES OF WHICH PART ONLY MAY BE TAKEN. Section 8.

Township.	Nos. on deposited Plans.
Hunslet - - -	3 5 41 42 44 45 46 47 53 104 114 115 116 117 118 120 156 157 158 159 162 164 165.
Middleton - - -	277 278

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